

Lalbabu and Another v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 2 May 2023 · Writ-C No. 14907 of 2023 · **Final assessment quashed for want of fifteen-day notice under clause 6.8.**

HEADNOTE

Absence of a clear fifteen days' notice under Clause 6.8 of the U.P. Electricity Supply Code, 2005, between a provisional-assessment notice dated 22.07.2021 and a hearing fixed for 04.08.2021, vitiated the final assessment. Adopting the operative order in Writ-C No. 14162 of 2023, the Court quashed the final assessment and the consequential recovery, left the licensee free to proceed afresh in accordance with law, and directed that the order be communicated to the Managing Director of the DISCOM.

FACTUAL SUMMARY

Petitioners Lalbabu and another assailed a final assessment raised by the distribution licensee. That order recorded a notice of provisional assessment dated 22 July 2021, calling on them to file objections and to appear for hearing on 4 August 2021. The gap was short of a clear fifteen days. Before the Allahabad High Court the Corporation conceded that the writ was covered by an order passed the same day in Writ-C No. 14162 of 2023.

REUSABLE CONSTRUCTIONS

1. A final assessment cannot stand where the provisional-assessment notice does not give the consumer a clear fifteen days under Clause 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 1
2. Quashing an assessment for breach of the Clause 6.8 notice requirement leaves the licensee free to take fresh proceedings in accordance with law. ¶ 2-3

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

fifteen-day notice before final assessment

HOLDING

Because the provisional-assessment notice dated 22.07.2021 did not give a clear fifteen days before the hearing on 04.08.2021, as Clause 6.8 of the U.P. Electricity Supply Code, 2005 requires, the final assessment and the consequential action for realization of the sum were quashed. The licensee may proceed afresh in accordance with law. The Registrar (Compliance) shall communicate the order to the Managing Director of the DISCOM. The petition was disposed of on the same terms as Writ-C No. 14162 of 2023. ¶ 1-3

PRINCIPLE TAGS

assessment-quashed-for-breach-of-clause-6.8-procedure The final assessment and recovery were quashed because the provisional notice of 22.07.2021 did not give a clear fifteen days before the hearing fixed on 04.08.2021. ¶ 1-3

para-6.8-non-compliance-vitiates-assessment-and-recovery Non-compliance with the Clause 6.8 fifteen-day notice vitiated both the final assessment and the consequential steps taken to realize the sum. ¶ 1-2

6.8-procedure-mandatory The Court treated the fifteen-day notice under Clause 6.8 as a condition the assessing officer had to meet before a final assessment could stand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE PETITIONERS' LIABILITY ON THE MERITS OF THE ASSESSMENT

The licensee was left free to proceed afresh in accordance with law. ¶ 2-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Writ-C No. 14162 of 2023			2-3	Referred
Writ-C No. 14162 of 2023				

SCJ-3446 · Lalbabu and Another v. State of U.P. and 3 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.